

MEMORANDUM FOR FILE

FROM: Tawsif Habib
CODE: Code 663
TO: Code 02
DATE: 03/09/2026
SUBJECT: Non-Competitive Procurement Justification Memo for Actions Under SAT

I. BACKGROUND

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available.
2. FAR 8.405-6 allows for limiting sources for orders or BPAs under Federal Supply Schedules under certain circumstances or for items peculiar to one manufacturer
3. As required by FAR 13.106-3(b)(3)(i), FAR 8.405-6(a)(1), or FAR 8.405-6(b)(2), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE (Include manufacture/sole source name and address.)

NSWCCD Code 663 performs various explosive testing in the test pond. Its water filtration system is essential for maintaining water clarity during testing operations. The system's circulation relies on three primary pumps. Currently, two of the three pumps are out of service due to component failure from standard wear and tear. With only one pump being operational, water circulation is significantly reduced, causing the test pond to become cloudy and dirty, which negatively impacts mission readiness. Based on the above needs, this procurement request is for two (2) replacement pumps to be provided by Associated Mechanical Equipment Supplier

Pump Manufacturer: Associated Mechanical Equipment Supplier
Address: 8918 Herrmann Drive, Columbia, MD, 21045
Phone: +1 (410) 995- 6971
POC: Aaron Mazaika

III. BASIS FOR DETERMINATION FOR USE OF OTHER THAN FULL & OPEN COMPETITION

☒ **A. BRAND NAME.** The item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ **1. Restrictive Rights.** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements.** The item or service is only available from the Original Equipment Manufacturer (OEM).

☐ **3. Federal Supply Schedule (FSS) IAW FAR 8.405-6(b).**

☒ **4. Other Reasons.** *The existing facility infrastructure for the Explosives Test Pond water filtration system is standardized on the Weinman 6L2SW-Y34 pump model. To ensure direct interoperability and prevent a system re-design, a 'form, fit, and function' replacement is mandatory. Acquisition of any other brand would introduce duplication of cost and unacceptable schedule delays resulting from the re-engineering of the system's infrastructure. Therefore, specifying the Weinman brand name is the only technically feasible approach to restore this system to full operational capability.*

☐ **B. SOLE SOURCE.** (select all that apply)

☐ **1. Restrictive Rights.** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

☐ **3. Other Reasons.**

☐ **4. Federal Supply Schedules (FSS): IAW FAR 8.405-6(a)(1)**

☐ a. An urgent and compelling need exists, and following the procedures would result in unacceptable delays;

☐ b. Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized; or

☐ c. In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited-sources procedures.

IV. CERTIFICATIONS & APPROVALS

A. Technical/Requirements Certification: I certify that the facts and representation under my cognizance, which are included in this justification, are complete and accurate to the best of my knowledge and belief.

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Customer/Requestor Signature

Tawsif Habib/ Engineer/ 762.436.7254
Name / Title / Phone

03/09/2026
Date

B. Certification/Approval: Upon the basis of the above justification and authority, I hereby approve the solicitation of the proposed procurement(s) described herein from a sole source or limited sources.



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Contracting Officer Signature

Name / Title / Phone

Date